



DEPARTMENT OF EDUCATION

Colorado State Board of Education

RULES FOR THE ADMINISTRATION OF THE SUPPLEMENTAL ONLINE EDUCATION GRANT

1 CCR 301-73

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

1.0 Statement of Basis and Purpose.

The statutory basis for these rules is found in § 22-2-130 C.R.S.; generally, and specifically subsections (4) and (5) and; § 22-2-107(1)(c) C.R.S.

§ 22-2-130 C.R.S., requires the State Board of Education to promulgate rules specifying the procedures and time frames for applying for a grant, the form of the grant application, the information to be provided by the applicant, and any criteria for awarding grants that are in addition to those specified in § 22-2-130(6)(b).

2.0 Definitions

2.01 "BOCES" means a Board of Cooperative Educational Services created pursuant to § 22-5-101 C.R.S. et seq., all member school districts of which are eligible school districts.

2.02 "Eligible Charter School" means:

2.02.1 A charter school that is authorized by an eligible school district pursuant to § 22-30.5-101 C.R.S. and that does not operate an on-line program; or

2.02.2 An institute charter school that is authorized pursuant to § 22-30.5-501, C.R.S. et seq. that enrolls fewer than three thousand students, as determined by the institute charter school's pupil enrollment certified by the state charter school institute on behalf of the institute charter school to the state board pursuant to section § 22-30.5-513 (3) (a), C.R.S. and that does not operate an on-line program.

2.03 "Department" means the Department of Education created and existing pursuant to § 24-1-115, C.R.S.

2.04 "Eligible School District" means a school district that does not export an on-line program to students receiving the program at a location outside of the school district's geographic boundaries and that enrolls fewer than three thousand students, as determined by the school district's pupil enrollment certified to the state board pursuant to section 22-54-112.

2.05 "Grant Program" means the supplemental on-line education grant program.

2.06 "Provider" means an entity that sells Supplemental Online Education Courses that are taught by employees of the provider who are teachers licensed in Colorado pursuant to § 22-60.5-101 C.R.S. et seq.

2.07 "Supplemental Online Education Course" means an online education course that is:

2.07.1 Taught by a teacher who is licensed pursuant to § 22-60.5-101 C.R.S. et seq.;

2.07.2 Delivered via an internet format to one or more students at a location that is remote from the delivery point; and

2.07.3 Purchased by an Eligible School District, Eligible Charter School, or BOCES from a Provider to augment the education program provided by the eligible school district, eligible charter school, or BOCES.

3.0 Implementation Procedures

3.01 Criteria to determine Eligible School Districts and Eligible Charter Schools shall be limited to: (a) those Eligible School Districts and Eligible Charter Schools that do not export an on-line program to students receiving the program at a location outside of the school district's geographic boundaries; and (b) those Eligible School Districts and Eligible Charter Schools that enroll fewer than three thousand students, as determined by pupil enrollment.

3.02 The Department will be the responsible agency for implementing the Supplemental Online Education Grant. The Department will develop a Request for Proposal ("RFP"), pursuant to the Department's RFP process and pursuant to the requirements found in § 22-2-130 C.R.S.

3.03 The RFP must include evidence that the proposed program will support the removing of financial and technical barriers to provide Supplemental Online Education Courses and will be used for one or more of the following purposes:

3.03.1 As additional reimbursement for the cost of purchasing Supplemental Online Education Courses; or

3.03.2 To increase ability to access Supplemental Online Education Courses by:

3.03.2.1 Providing technical equipment or hiring technical specialists to audit and configure computer networks;

3.03.2.2 Providing staff development and training for onsite personnel; or

3.03.2.3 Providing financial assistance to help hire site coordinators or other personnel needed to facilitate online access.

3.04 The selection of grant recipients will give priority to Eligible School Districts and Eligible Charter Schools that have not been financially or technologically able to provide Supplemental Online Education Courses and that can demonstrate need in the RFP proposal.

3.05 Additional consideration will be given in the RFP process to those Eligible School Districts and Eligible Charter Schools where:

3.05.1 It can be demonstrated that barriers prevent the offering of courses to students in order to meet the higher education admission standards as adopted by the Colorado Commission on Higher Education and that Supplemental Online Education Courses can assist in eliminating those barriers.

3.05.2 There are limited additional revenue sources available to assist in overcoming the financial and technological barriers to providing supplemental online education courses.

3.06 Grants awarded through RFP review and approval will not exceed five thousand dollars in a fiscal year. Recipients may receive grants in consecutive years only if recipient re-applies and is approved through the RFP procedure.

- 3.07 For projects beginning before June 30, 2008, RFP's must be submitted no later than May 1, 2008. All funds for these approved projects must be expended prior to June 30, 2008. Grants awarded before June 30, 2008 may be used for reimbursement of eligible expenditures from the 2007-2008 school year with appropriate documentation as required in section 3.10 of these rules.
- 3.08 For projects beginning after June 30, 2008 and each year thereafter, RFP's must be submitted no later than August 1 and January 2 (or closest business day following) each year thereafter. All funds must be expended prior to June 30 of the following year.
- 3.09 The responses to the RFP shall be reviewed within thirty days of the application and applicants shall be notified of their acceptance or denial.
- 3.10 Each Eligible School District or Eligible Charter School participating in the program must submit an annual report to CDE no later than August 1 of each year following the completion of the grant program and shall include the following information:
- 3.10.1 The number of students from the Eligible School District or Eligible Charter School whose tuitions were funded by the grant program with applicable course titles for each student.
- 3.10.2 The number of students who completed the courses funded by the grant.
- 3.10.3 Photocopy of receipts for any eligible expenditure pursuant to section 3.03 that was supported by the grant program.

Editor's Notes

History

Entire rule emer. rule eff. 03/06/2008.

Entire rule eff. 05/30/2008.